

Superior Court of the State of California, County of Orange

TENTATIVE RULINGS FOR DEPARTMENT W02

HON. JUDGE CARMEN R. LUEGE

Date: April 18, 2025

Civil Court Reporters: The Court does not provide court reporters for law and motion hearings. Please see the Court's website for rules and procedures for court reporters obtained by the Parties.

Tentative Rulings: The Court will endeavor to post tentative rulings on the Court's website by 4 p.m. on Thursday. Do NOT call the Department for a tentative ruling if none is posted. **The Court will NOT entertain a request for continuance or the filing of further documents once a tentative ruling has been posted.**

Submitting on the Tentative Ruling: If ALL counsel intend to submit on the tentative ruling and do not wish oral argument, please advise the Court's clerk or courtroom attendant by calling (657) 622-5902. If all sides submit on the tentative ruling and so advise the Court, the tentative ruling shall become the Court's final ruling and the prevailing party shall give Notice of Ruling and prepare an Order for the Court's signature if appropriate under CRC 3.1312. **Please do not call the Department unless ALL parties submit on the tentative ruling.**

Non-Appearances: If no one appears for the hearing and the Court has not been notified that all parties submit on the tentative ruling, the Court shall determine whether the matter is taken off calendar or whether the tentative ruling shall become the final ruling.

Remote Appearances: Department W02 permits non-evidentiary proceedings, including law and motion, to be conducted remotely. *If you are appearing remotely:* (1) all counsel and self-represented parties appearing for such hearings **must**, prior to 10:00 a.m. on Friday, check-in online via the Court's civil video appearance website at [Civil Appearance Procedure and Information | Superior Court of California | County of Orange \(occourts.org\)](https://www.occourts.org/civil/appearance); (2) participants will then be prompted to join the courtroom's Zoom hearing session; and (3) the calendar will be displayed and participants will then be instructed to rename their Zoom name to include their hearing's calendar number. Check-in instructions and an instructional video are available on the court's website. Attorneys **shall** comply with Local Rule 375(c) which governs "Decorum for In-Person and Remote Court Appearances." (<https://www.occourts.org/system/files/hr/div3.pdf>.)

#	Case Name	Tentative
51	Griggs v Ayala	Demurrer to Complaint by DEFT
	24-01427414	Withdrawal of Motion filed 4/8/2025 No appearance required

53	Macedonio v Garibay 22-01267043	Motion for Leave to File Cross Complaint by DEFT and Trial Setting Conference The Motion for Leave to file a Cross-Complaint brought by Defendant Juan Fernando Garibay is GRANTED, pursuant to Code of Civil Procedure section 428.50, subdivision (c). Defendant shall separately file and serve the proposed Cross-Complaint, attached as Exhibit A to the Declaration of Nima Sadeghian, within 10-days. Defendant is granted leave to correct the caption of the proposed pleading before filing the cross-complaint. The names of the parties in the caption of the proposed pleading are not identified or mentioned in the allegations of the cross-complaint. The proposed cross-complaint asserts a claim for indemnity and contribution, relating to the motor vehicle accident which is the subject of the complaint. (§7 of Sadeghian Declaration and Exhibit A thereto, at §3-§7.) "Cross-complaints for comparative equitable indemnity would appear virtually always transactionally related to the main action." (<i>Time for Living, Inc. v. Guy Hatfield Homes/ All American Development Co.</i> (1991) 230 Cal.App.3d 30, 38.) Courts "have repeatedly recognized that cross-complaints for comparative equitable indemnity are specifically allowed under section 428.10, subdivision (b) because of their transactional relationship to the complaint." (<i>Ibid.</i>) "An indemnity claim effectively seeks to apportion among the parties to the indemnity action the precise liability claimed by the plaintiff in the main action; therefore the indemnity claim of necessity arises out of the same occurrence or series of occurrences as asserted by the plaintiff." (<i>Id.</i> at p. 39.) Thus, the proposed Cross-Complaint "arises out of the same transaction, occurrence, or series of transactions or occurrences as the cause brought against Defendants." (Code Civ. Proc., § 428.10, subd. (b).) Additionally, given the close connection between the proposed claim and the claims within the Complaint, permitting the proposed Cross-Complaint will serve the interests of justice and judicial efficiency. (Code Civ. Proc., § 428.50, subd. (c).) The parties and/or their counsel shall appear for the trial setting status conference also scheduled on 4/18/25.
54	Davis v Mid Century Insurance Company 16-00877480	Motion to Compel Deposition by DEFT and OSC re Sanctions set by the Court. Defendants Mid-Century Insurance Company and Truck Insurance Exchange move to compel Plaintiff Jaimie Davis to appear for a further deposition. Defendant's motion is DENIED.